

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 15-012
Designation of the Tribally Designated Housing Entity**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

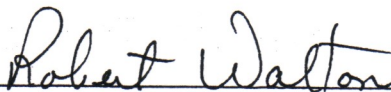
WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the 104th session of the United States Congress has passed the first Native American specific housing law, the Native American Housing Assistance and Self-Determination Act of 1996, and

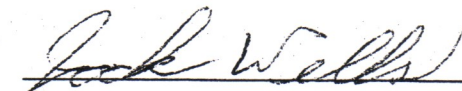
WHEREAS, according to that law, the governing bodies of federally recognized tribes may, by exercise of the powers of self-government, designate and authorize a housing entity for the purposes of being the recipient of funds from the U.S. Department of Housing and Urban Development and administering and operating tribal housing programs.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby exercise of its powers of self-government, hereby designates the Chickasaw Nation Division of Housing as the Tribally designated Housing Entity with their responsibilities of serving as their recipient of funds from the United States Department of Housing and Urban Development and administering, managing and directing all operations pertaining to the housing needs of Chickasaw citizens and others within the jurisdiction of the Chickasaw Nation.

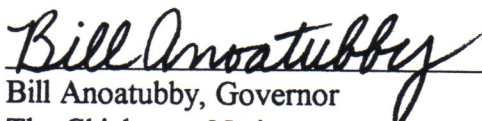
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 20, 1998, by a vote of 12 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 20 1998

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Explanation: On June 20, 1998, the Chickasaw Tribal Legislature enacted General Resolution Number 14-056, which designated the Chickasaw Nation as the Tribally-designated Housing Entity (TDHE) for the Chickasaw Nation and the recipient of funds from the U.S. Department of Housing and Urban Development. The language of GR14-056 is problematic because the final draft of the negotiated rule for implementation of NAHASDA states that "If an Indian tribe designates itself as a recipient, there is no TDHE. . ." Also, recent amendments to laws concerning grants for the Drug Elimination Program and public and assisted housing sports programs make such grants available to TDHEs but not to Indian tribes. Therefore, the language of GR14-056 would eliminate our opportunity to continue the Drug Elimination Program and housing sports programs (currently funded at \$468,520/year).

The suggested language change is technical in nature and in practice would accomplish the same goals. Housing programs and housing-related services would be operated and managed by the Executive Department of tribal government.

Requested By: Bill Anoatubby, Governor

Presented By: Jerry Imotichey, Chairman
Legislative Committee